

M/s Hotel Pride Inn v. Purvanchal Vidhut Vitrana Nigam Ltd. and Another

Allahabad High Court · Division Bench · 22 April 2024 · 2024:AHC:98461-DB · Writ - C No. 10727 of 2024 · **Writ disposed; petitioner to supply e-mail ID so M.R.I. readings can be sent; demand not quashed**

HEADNOTE

Where a consumer, already given liberty in a prior writ to file billing objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005, has not filed those objections and instead seeks quashing of the licensee's reply reiterating a demand of Rs. 2,02,581 on the ground that M.R.I. readings have not been supplied, the writ court will not quash the demand. Recording the licensee's statement that the readings will be emailed once an e-mail ID is given, the Court permits the consumer to supply that ID so the M.R.I. can be sent, and disposes of the petition. It did not decide whether the amount is due, nor direct a Clause 6.5 hearing or stay recovery.

FACTUAL SUMMARY

M/s Hotel Pride Inn petitioned the Allahabad High Court (Writ-C No. 10727 of 2024) against Purvanchal Vidyut Vitran Nigam Ltd. to quash a departmental reply which, answering a request for information and documents, reiterated that Rs. 2,02,581 was due. In an earlier writ (Writ-C No. 16127 of 2023) the hotel had sought to keep that sum off its regular bill; that petition was disposed of with liberty to object under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The hotel had not filed those objections, saying it could not do so without M.R.I. readings.

Licensee's counsel stated that the department had asked for an e-mail ID and would send the M.R.I. once it was supplied. On 22 April 2024 the Division Bench permitted the petitioner to give that ID so the readings could be emailed, and disposed of the writ. Early hearings were interrupted by High Court Bar Association election slogan-shouting; those incidental proceedings were dropped on 29 May 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

M.R.I. readings to enable Clause 6.5 billing objections; writ will not quash a reiterating demand

QUESTION

Will the writ court quash a licensee's reply reiterating dues, where the consumer was already relegated to Clause 6.5 but has not objected, claiming M.R.I. readings were not supplied?

HOLDING

No. A prior writ (Writ-C No. 16127 of 2023) had already disposed of a challenge to adding Rs. 2,02,581 to the regular bill, with liberty to file objections under Clause 6.5. The petitioner had not filed those objections and instead sought documents, submitting that without M.R.I. readings it could not object. Counsel for the licensee stated that the department had sought an e-mail ID and would supply the M.R.I. once it was provided. The Court permitted the petitioner to supply that ID so the readings could be emailed, and disposed of the petition without quashing the demand or deciding the quantum. ¶ 1-6

QUALIFIER

The Court did not itself direct a Clause 6.5 hearing or stay the demand; it recorded the licensee's offer to email the M.R.I. and disposed of the writ.

FLAG Paras 1-6 are the 22.04.2024 Order on memo of petition (electricity disposal). Source PDF is composite: 02.04.2024 (slogan-shouting interrupting the hearing; Returning Officers directed to appear), 02.04.2024 after recess (Bar election Code of Conduct; adjourned), 03.04.2024 (CCTV; main matter listed 22.04.2024), 22.04.2024 (this disposal, plus a sealed-cover list of identified advocates), 13.05.2024 (list 29.05.2024), and 29.05.2024 (Neutral Citation 2024:AHC:98461-DB: disturbance proceedings dropped taking a lenient view after peaceful elections; petition consigned). No Code clause other than 6.5 is cited. Section 35 of the Advocates Act appears only in the Bar Code of Conduct, not as an electricity holding.

meter-reading-dispute-clause-6.5 Want of M.R.I. readings is treated as a reason the consumer has not yet filed Clause 6.5 objections. The writ court facilitates supply of the readings (here, by e-mail once an ID is given) rather than quashing the reiterating demand or deciding the bill. ¶ 3-6

billing-objection-to-executive-engineer-under-6.5 A prior writ had already left the Rs. 2,02,581 billing dispute to Clause 6.5. This order does not reopen that path or decide the dues; it only enables the consumer to obtain M.R.I. readings so objections can be filed. ¶ 2-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS. 2,02,581 IS DUE AND WHETHER THE LICENSEE'S REPLY REITERATING THAT SUM SHOULD BE QUASHED

The petition sought quashing of that reply. The Court did not examine the quantum or quash the demand; it only permitted supply of an e-mail ID for M.R.I. readings. ¶ 1-6

NOT DECIDED — WHETHER M.R.I. READINGS ARE A LEGAL PRECONDITION TO FILING CLAUSE 6.5 OBJECTIONS

The petitioner so submitted; the Court recorded the licensee's offer to email the readings and disposed of the writ without deciding that as a proposition of law. ¶ 3-6